

Court No. - 37

Case :- WRIT - C No. - 60067 of 2012

Petitioner :- Tek Chand

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Sanjay Singh

Respondent Counsel :- C.S.C.,A.L. Yadav

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri A.L.Yadav, learned counsel appearing for the Corporation.

By means of this writ petition the petitioner has prayed for quashing the recovery certificate dated 23.8.2012 issued by respondent no.3 (Executive Engineer) for the recovery of an amount of Rs. 89,685/- plus other charges as electricity dues from the petitioner.

Learned counsel for the petitioner submits that the petitioner has already filed a claim petition before the District Consumer Forum claiming damages and raising dispute regarding electricity dues. He further submits that the entire amount has already been collected forcefully from the petitioner.

Learned counsel for the petitioner submits that the petitioner's electricity connection has not yet been restored although entire amount has been paid.

We are of the view that the issue raised in this writ petition cannot be entertained. The petitioner may pursue his claim before the District Consumer Forum

under the U.P. Electricity Supply Code, 2005. It is also open for the petitioner to make appropriate application before the competent authority to restore the connection.

With the aforesaid observation, the writ petition is dismissed.

Order Date :- 21.11.2012

SKM